

Intellectual Property and Confidentiality Policy

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Approved By: General Counsel, Chief Technology Officer

Classification: Internal - Mandatory Compliance

1. Purpose and Scope

1.1 Purpose

This policy establishes the framework for the protection, management, and enforcement of intellectual property (IP) rights and confidential information belonging to or managed by Meridian Holdings Group ("the Company"). It ensures that all IP created during the course of business is properly identified, protected, and leveraged for the Company's benefit while respecting the IP rights of third parties.

1.2 Scope

This policy applies to:

- All employees, contractors, consultants, temporary workers, and interns
 - All forms of intellectual property including patents, trademarks, copyrights, trade secrets, know-how, and proprietary information
 - All confidential business information regardless of format (digital, physical, verbal)
 - All third-party IP that the Company licenses, accesses, or uses
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2. Intellectual Property Ownership

2.1 Company-Owned IP

All intellectual property created by employees during the course of their employment or using Company resources is the exclusive property of the Company. This includes:

- a) Inventions, discoveries, and improvements, whether or not patentable
- b) Software code, algorithms, and technical designs
- c) Literary works, reports, presentations, and documentation

- d) Trademarks, service marks, logos, and branding materials
- e) Trade secrets, formulas, processes, and methods
- f) Customer lists, business plans, and strategic information
- g) Data, databases, and compilations of information

2.2 Assignment of Rights

All employees and contractors must execute an Intellectual Property Assignment Agreement as a condition of engagement. This agreement assigns to the Company all rights, title, and interest in IP created:

- a) During the course of employment or engagement
- b) Using Company resources, facilities, or equipment
- c) Relating to the Company's current or anticipated business
- d) Resulting from work performed for the Company

The assignment includes all worldwide rights in all forms and media, whether now known or hereafter devised, for the full term of protection available under applicable law.

2.3 Contractor and Third-Party IP

When engaging contractors or third parties to create IP for the Company:

- a) All contracts must include clear IP assignment provisions transferring ownership to the Company
- b) Work-for-hire provisions must be included where applicable under law
- c) Contractors must warrant that their work does not infringe third-party IP rights
- d) Contractors must disclose any pre-existing IP that will be incorporated into deliverables
- e) Licenses for pre-existing IP must be obtained on terms acceptable to the Company
- f) The Company must receive perpetual, irrevocable, worldwide, royalty-free licenses for any contractor pre-existing IP incorporated into deliverables

2.4 Open Source Software

The use of open source software must comply with the following:

- a) All open source components must be approved by the Technology Department before use
- b) An inventory of all open source software used in Company products must be maintained
- c) License obligations (attribution, source code disclosure, copyleft requirements) must be identified and complied with
- d) Open source software with copyleft licenses (GPL, AGPL) must not be incorporated into proprietary Company products without approval from the General Counsel
- e) Contributions to open source projects on behalf of the Company require approval from the CTO and General Counsel

3. Confidential Information

3.1 Definition and Classification

Confidential information includes any non-public information that has commercial value or could cause harm to the Company if disclosed. Information is classified as follows:

Classification	Description	Examples
Top Secret	Information whose disclosure would cause severe damage	M&A plans, trade secrets, cryptographic keys
Confidential	Information whose disclosure would cause significant harm	Financial results (pre-release), customer data, source code
Internal	Information intended for internal use only	Internal policies, org charts, internal communications
Public	Information approved for public disclosure	Press releases, marketing materials, published reports

3.2 Handling Requirements

Classification	Storage	Transmission	Sharing	Disposal
Top Secret	Encrypted, restricted	Encrypted, approved	Named individuals only,	Certified destruction
Confidential	Encrypted, cloud storage	Encrypted only	NDA required basis, NDA	Secure deletion/shredding
Internal	Company systems only	Company email/systems	Internal personnel only	Standard deletion
Public	No restrictions	No restrictions	No restrictions	No restrictions

3.3 Non-Disclosure Obligations

- All employees must sign a Non-Disclosure Agreement (NDA) as a condition of employment
- NDAs must remain in effect for a minimum of 5 years following termination of employment or engagement
- For trade secrets, the obligation of confidentiality continues indefinitely for as long as the information remains a trade secret
- External parties must execute an NDA before receiving any Company confidential information
- Mutual NDAs with third parties must be reviewed and approved by the Legal Department

3.4 Confidentiality Exceptions

Confidential information may be disclosed without prior authorization only when:

- Required by law, regulation, or court order (notification to Legal Department is required before disclosure)
- Required by regulatory authorities with jurisdiction over the Company

- c) The information has become publicly available through no fault of the disclosing party
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4. Trade Secret Protection

4.1 Identification

Trade secrets include any proprietary information that derives economic value from not being generally known and is subject to reasonable efforts to maintain its secrecy. The Company maintains a Trade Secret Register identifying all recognized trade secrets.

4.2 Protection Measures

The following measures must be implemented to protect trade secrets:

- a) Physical access controls to areas where trade secrets are developed or stored
- b) Digital access controls with role-based permissions and multi-factor authentication
- c) Encryption of all digital trade secret materials at rest and in transit
- d) Marking of documents containing trade secrets with appropriate confidentiality legends
- e) Limiting access to trade secrets to individuals with a documented need-to-know
- f) Regular auditing of access logs for trade secret materials
- g) Exit interviews that specifically address trade secret obligations
- h) Clean room procedures when developing products that may be similar to competitor offerings

4.3 Trade Secret Incidents

Any suspected misappropriation, unauthorized disclosure, or compromise of trade secrets must be reported immediately to the General Counsel. The Legal Department will:

- a) Investigate the incident within 24 hours
 - b) Assess the scope and impact of the disclosure
 - c) Implement measures to mitigate further damage
 - d) Determine whether legal action is warranted
 - e) Report to law enforcement if criminal misappropriation is suspected
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5. IP in Contracts

5.1 Customer Contracts

Customer contracts involving IP must address:

- a) Ownership of custom developments and modifications
- b) License scope, limitations, and restrictions
- c) Warranties against IP infringement
- d) Indemnification for IP infringement claims
- e) Restrictions on reverse engineering
- f) Survival of IP provisions beyond contract termination

5.2 Vendor and Supplier Contracts

All contracts with vendors or suppliers who may create, access, or handle Company IP must include:

- a) Clear IP ownership provisions (default: Company owns all custom work product)
- b) Confidentiality obligations consistent with this policy
- c) Restrictions on use of Company IP beyond the scope of the engagement
- d) Obligations to return or destroy Company IP upon termination
- e) Right to audit vendor compliance with IP obligations
- f) Representations that vendor deliverables do not infringe third-party IP
- g) Indemnification for any IP infringement in vendor deliverables

5.3 Joint Development

Joint development arrangements with third parties must:

- a) Be approved by the General Counsel and CTO before commencement
- b) Include a detailed Joint Development Agreement specifying IP ownership
- c) Clearly allocate ownership of foreground IP (created during the collaboration)
- d) Address licensing of background IP (pre-existing IP contributed by each party)
- e) Define rights to jointly-created IP, including commercialization rights
- f) Include provisions for dispute resolution regarding IP ownership

6. IP Enforcement

6.1 Monitoring

The Legal Department maintains an ongoing IP monitoring program that includes:

- a) Trademark watch services for registered marks

- b) Patent monitoring for potential infringements
- c) Internet monitoring for unauthorized use of Company IP
- d) Competitor product analysis for potential IP violations
- e) Domain name monitoring for cybersquatting

6.2 Enforcement Actions

Upon identification of potential IP infringement:

- a) The Legal Department will assess the nature and scope of the infringement
- b) A cease-and-desist letter will be issued where appropriate
- c) Alternative dispute resolution will be considered before litigation
- d) Litigation will be pursued when necessary to protect the Company's IP rights
- e) Criminal referrals will be made in cases of willful counterfeiting or piracy

6.3 Defensive IP Strategy

The Company maintains a defensive IP strategy that includes:

- a) Building and maintaining a strong patent portfolio
- b) Registering trademarks in all relevant jurisdictions
- c) Maintaining comprehensive copyright registrations
- d) Participating in patent pools and cross-licensing arrangements where beneficial
- e) Implementing freedom-to-operate analyses before launching new products

7. Employee Responsibilities

7.1 General Obligations

All employees must:

- a) Protect Company IP and confidential information at all times
- b) Report any suspected IP infringement or breach of confidentiality immediately
- c) Comply with all marking and handling requirements for classified information
- d) Not use personal devices or accounts for Company confidential information without IT approval
- e) Cooperate with IP protection measures including audits and investigations
- f) Not disclose Company IP in academic publications, conference presentations, or social media without prior approval from the Legal Department

7.2 Departing Employees

Employees leaving the Company must:

- a) Participate in an exit interview that addresses IP and confidentiality obligations
 - b) Return all Company materials, documents, and devices
 - c) Confirm deletion of all Company information from personal devices and accounts
 - d) Acknowledge ongoing confidentiality and non-disclosure obligations
 - e) Acknowledge any applicable non-compete or non-solicitation restrictions
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8. Compliance and Enforcement

8.1 Training

All employees must complete IP and confidentiality training within 30 days of hire and annually thereafter. Training covers:

- a) Types of IP and their importance to the Company
- b) Classification and handling of confidential information
- c) Employee obligations regarding IP and confidentiality
- d) Common scenarios and decision-making guidance
- e) Reporting procedures for suspected violations

8.2 Violations

Violations of this policy may result in:

- a) Disciplinary action up to and including termination
- b) Legal action for damages and injunctive relief
- c) Criminal prosecution for theft of trade secrets
- d) Personal liability for losses caused by the violation

8.3 Policy Review

This policy is reviewed annually by the General Counsel and CTO. Updates are communicated to all personnel through the Company's policy management system.

Appendix A: IP Assignment Agreement Template - See separate document POL-IPC-005-A

Appendix B: Non-Disclosure Agreement Template - See separate document POL-IPC-005-B

Appendix C: Trade Secret Register - See separate document POL-IPC-005-C

Appendix D: Open Source Approval Request Form - See separate document POL-IPC-005-D

Appendix E: Information Classification Guide - See separate document POL-IPC-005-E